

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

ALLATISHA FOY,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BRIAN GREAGIE, SHIELD # 13811, INDIVIDUALLY
AND AS A POLICE OFFICER; LT. ERIC DYM OF
THE 807 COMMAND, PSA #7, TAX ID # 933762,
INDIVIDUALLY AND AS A POLICE OFFICER, AND
JANE DOE FROM PSA 7 (FEMALE LATINO OFFICER
WITH BLOND HAIR, APPROX. 5'6-5'7) AND JILL DOE
(FEMALE LATINO OFFICER WITH BLACK HAIR,
APPROX. 5'8-5'9), SGT. JIM DOE (AFRICAN
AMERICAN MALE DESK SGT. OF PSA 7), ALL
WHOSE IDENTITIES ARE PRESENTLY UNKNOWN,
INDIVIDUALLY AND AS POLICE OFFICERS,

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is
place where cause of action
arose.

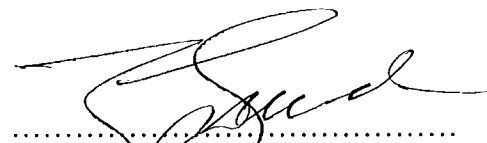
Defendants.

-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 26th day of July, 2018



.....
EMDIN & RUSSELL, LLP.
Royce Russell, Esq.,
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer Brian Greague
Shield # 13811
c/o PSA 7
737 Melrose Avenue
Bronx, NY 10455

Lieutenant Eric Dym
Tax# 933762
c/o PSA 7
737 Melrose Avenue
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

ALLATISHA FOY,

Plaintiff,

VERIFIED COMPLAINT

-against-

INDEX NO.

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BRIAN GREAGIE, SHIELD # 13811, INDIVIDUALLY
AND AS A POLICE OFFICER; LT. ERIC DYM OF
THE 807 COMMAND, PSA #7, TAX ID # 933762,
INDIVIDUALLY AND AS A POLICE OFFICER, AND
JANE DOE FROM PSA 7 (FEMALE LATINO OFFICER
WITH BLOND HAIR, APPROX. 5'6-5'7) AND JILL DOE
(FEMALE LATINO OFFICER WITH BLACK HAIR,
APPROX. 5'8-5'9), SGT. JIM DOE (AFRICAN
AMERICAN MALE DESK SGT. OF PSA 7), ALL
WHOSE IDENTITIES ARE PRESENTLY UNKNOWN,
INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.

-----X

The plaintiff, Allatisha Foy, by her attorneys, Emdin & Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers and correction officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of August, 2017, Police Officer Brian Greaige, hereinafter referred to as "Greaige" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to PSA 7, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, his Shield # is 13811.
4. Upon information and belief, at all times hereinafter mentioned and on the 5th day of August, 2017, "Greaige", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.
5. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of August, 2017, Lt. Eric Dym, hereinafter referred to as "Dym" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the PSA 7, his Tax ID number is 933762, and at all relevant times set forth below acted in the capacity of a police officer.
6. Upon information and belief, at all times hereinafter mentioned and on the 5th day of August, 2017, "Dym" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee. On August 5th, 2017, Lt. Dym was Police Officers Greaige, Jane and Jill Doe's supervisor.
7. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of August, 2017, Police officer Jane Doe (female Latino officer with blond hair, approximately 5'6" – 5'7"), whose identity is presently unknown, hereinafter referred to as "Jane" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to PSA 7, and at all relevant times set forth below acted in the capacity of a police officer.
8. Upon information and belief at all times hereinafter mentioned and on the 5th day of August, 2017, "Jane", was acting within the scope of her employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.
9. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of August, 2017, Police Officer Jill Doe (female Latino officer with black hair, approximately 5'8" – 5'9"), whose identity is presently unknown, hereinafter referred to as "Jill", was employed as a Police Officer by the "City" and/or "NYPD" and assigned to PSA 7, and at all relevant times set forth below acted in the capacity of a police officer.

10. Upon information and belief at all times hereinafter mentioned and on the 5th day of August, 2017, “Jill”, was acting within the scope of her employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.
11. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of August, 2017, Sgt. Jim Doe (African American Male Desk Sergeant), whose identity is presently unknown, hereinafter referred to as “Jim”, was employed as a Police Officer by the “City” and/or “NYPD” and assigned to PSA 7, and at all relevant times set forth below acted in the capacity of a police officer.
12. Upon information and belief at all times hereinafter mentioned and on the 5th day of August, 2017, “Jim”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.
13. Collectively, “Greaige,” “Dym,” “Jane,” “Jill” and “Jim” will hereafter be referred to as the “officers”.
14. Upon information and belief, on August 5th, 2017 the “officers”, individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.
15. On the 5th day of August, 2017, plaintiff, Allatisha Foy, hereinafter referred to as “Foy” was a resident of the State of New York, County of Bronx.
16. That on August 5th, 2017, at approximately 2:00 – 2:30 a.m., Foy was lawfully at PSA 7 Precinct located at 737 Melrose Avenue, Bronx, New York, hereinafter referred to as “the location.”
17. At that time and location, the plaintiff was present to file a complaint against defendant Police Officer Greaige and other officers, as well as to make a statement for an individual who was falsely arrested.
18. When the plaintiff arrived at the location, she spoke to an unknown officer, “Jim,” inquiring as to how to file a complaint. Said officer was not helpful.
19. The unknown officer, “Jim,” proceeded to redirect Foy to another agency and stated that he did not know of the incident she was referencing.

20. Foy was told to wait, and while waiting, she noticed defendants “Jane” and “Jill” and informed the officer “Jim” that “Jane” and “Jill” were present at the incident for which is the basis of her complaint.
21. Defendants “Jane” and “Jill” came to the front where Foy was standing with “Jim” and it was at that point said officer acknowledged the incident that Foy was referencing.
22. Immediately, upon “Jim’s” acknowledgement, Defendant Greaige entered PSA 7.
23. Upon Defendant Greaige’s arrival, Foy stated that she wanted to file a complaint against him also.
24. All the defendants “officers” went to the back of the precinct for approximately 2-5 minutes. Upon the return of the defendants, Foy was asked to come further into the precinct desk area.
25. Ms. Foy was asked to put her purse/wallet down and place her arms behind her back. Ms. Foy was arrested.
26. Ms. Foy was handcuffed and searched.
27. Ms. Foy was not informed as to why she was being arrested.
28. Ms. Foy was tightly handcuffed and placed in a holding cell while handcuffed.
29. Upon one of the female defendants discovering that her birthday was August 5th, Ms. Foy was taunted by said defendants “officers”.
30. The “officers” also told the other people who were arrested that because of Ms. Foy’s desire to file a complaint, they could not be released.
31. Ms. Foy was fingerprinted, photographed and subjected to a warrant check.
32. Ms. Foy was held for over 24 hours without being informed of her charges.
33. Ms. Foy was handcuffed while being transported to Central Booking, whereupon she was informed by her then lawyer that she was falsely charged with starting a riot, among other charges.
34. Ms. Foy was released upon being presented before the Arraignment Judge without bail.
35. Ms. Foy made at least seven (7) court appearances before her case was dismissed.
36. As a result of this false arrest, Ms. Foy was terminated from her employment.

37. Ms. Foy was arrested at the precinct immediately after she identified defendant Greaige as the person she wished to file her complaint against, and she requested his shield number.
38. As a result of the defendants' actions, Ms. Foy was pushed, battered, illegally searched, seized, falsely arrested and imprisoned, suffered physical injury to her wrist and mental/emotion injury, as well as lost of employment.
39. All acts by the defendants were intentional.
40. Not one officer reported the misconduct.
41. Not one officer intervened, stopped or investigated the misconduct despite the ability to do so.
42. The Notice of Ms. Foy's Claim and Notice of intention to sue for damages eliciting the nature of the claim, the date of, the place where and the manner in which the claim arose were duly served upon the Comptroller of the defendant "City."
43. That a 50(h) hearing was held on July 9, 2018.
44. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
45. That this action is commenced within one year and 90 days after the cause of action arose.
46. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at length set forth herein.

48. That beginning on or about the 5th day of August, 2017, at or about approximately 2:00 – 2:30 a.m. at or near the “location” until the plaintiff’s arraignment on August 6th, 2017, the defendants “officers”, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.
49. That said imprisonment was caused by the defendants “officers”, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the plaintiff was guilty of any crimes for which she was charged.
50. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
51. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; she did not consent to the confinement; and the confinement was not otherwise privileged.
52. That the plaintiff was confined against her will until she was arraigned in the evening hours of August 6th, 2017 when she was released upon her own recognizance.
53. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom, and the said plaintiff has been otherwise damaged.
54. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.

56. That beginning on or about the 5th day of August, 2017, at or about approximately 2:00 - 2:30 a.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants "officers", their agents, servants and/or employees without any just cause or grounds, and held against her will under full force of arms.
57. That said arrest was caused by the defendants "officers", their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal seizure and search of the plaintiff, when the defendants "officers" lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.
58. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants "officers", their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
59. That the defendants "officers", their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
60. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.
61. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR BATTERY AND ASSAULT

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and affect as if more fully and at length set forth herein.

63. The plaintiff was seized, searched, held, handcuffed, pushed, battered, taunted and physically and emotionally brutalized by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant "officers".
64. That all said contact was committed without the plaintiff's permission or consent.
65. That all said contact was unlawful and without privilege.
66. That the use of force was excessive and without justification.
67. That all contact committed by defendants "officers" through their agents, servants, and/or employees, including the defendant "officers", were offensive to plaintiff and caused her to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.
68. That the above acts committed by the defendants "officers" constituted a battery and/or assault of the plaintiff.
69. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

70. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and affect as if more fully and at length set forth herein.
71. That the defendant, "City" was careless and reckless in hiring, retaining, assigning, training and failing to retrain, monitoring, supervising and promoting as and for its employees, defendants "officers", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed

to investigate the above named employees' backgrounds; in that the "City" failed to properly train, supervise and monitor the "officers"; and in that the defendant "City" was negligent in disciplining, retaining and retraining the named defendants "officers"; and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

72. That upon information and belief the "City" by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants "officers" and/or the PSA 7 that they were assigned to, prior to their seizure, search, discourtesy, fabrication of evidence and battery and assault of Foy on August 5th, 2017.
73. That the City failed to properly retrain said officers, negligently continued to employ said officers, negligently promoted and assigned "Dym" to be a supervisor, negligently retained "Greage," "Jane," "Jill" and "Jim" despite evidence of their police misconduct and continued to assign said officers to act in their capacities as police officers without proper supervision, training and discipline.
74. That the "officers", while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his/her police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his/her police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; and in that they failed to timely notify the Bronx County District Attorney's Office of exculpatory

information; and in that the defendants “officers”, their agents, servants and/or employees were otherwise careless, reckless and negligent.

75. That the aforesaid occurrence, to wit: battery and assault, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants “officers” without any negligence on the part of the plaintiff contributing thereto.

76. That by reason of the aforesaid, the plaintiff, was imprisoned, lost her freedom, and stressed, and she was thereby damaged.

77. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH THROUGH NINTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK

78. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.

79. That on or about the 5th day of August, 2017 at or about approximately 2:00 – 2:30 a.m. at the “location” the “officers” were present thereat as part of their regular and official employment as police officers for the defendant, “City”.

80. Plaintiff was lawfully and properly thereat, when the “officers” acting as agents, servants and/or employees of the defendant “City”, forcibly stopped, seized and frisked the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

81. When the plaintiff requested to see the officers' identification and badge number, and requested to file a complaint, she was retaliated against by the officers who battered and assaulted then frisked and handcuffed the plaintiff.
82. Upon information and belief, the officers were required to fill out a stop, question and frisk report.
83. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
84. Upon information and belief, the officers fabricated a reason for searching the plaintiff.
85. Further, the officers present at the plaintiff's arrest failed to report the false arrest.
86. Likewise, when the defendants "officers" were abusive to the plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
87. Upon information and belief, to date no disciplinary action has been taken against the offending officers for engaging in said conduct or for failing to intervene, stop it or report it.
88. That in order to cover up their misconduct, the officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiff.
89. That plaintiff was taunted because it was her birthday.
90. The plaintiff was used as an excuse as to why the others arrested were being processed/arrested.
91. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of her rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
92. That said acts constituted acts of cruel and unusual punishment and deprived plaintiff of her rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of

the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

93. That said acts constituted acts that violated the plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
94. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived plaintiff of her rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
95. That plaintiff, as an African American woman, was deprived of her right to equal protection under the law and was targeted and her rights violated based upon her race, a violation of the equal protection clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
96. That the officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the plaintiff's right to justice, and to injure her.
97. Upon information and belief, police officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
98. The officers herein conspired to deprive the plaintiff of evidence, of a fair trial, of witnesses, and of equal protection of the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
99. That the plaintiff's false arrest, battery and assault, and malicious prosecution and violation of her constitutional rights resulted from the defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to

gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to plaintiff's false arrest and prosecution, and injuries.

100. Defendants "officers" actions on August 5, 2017 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiff.
101. That plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, battered, assaulted, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
102. That by reason of the aforesaid, the plaintiff was deprived her liberty, lost income, battered, injured, maliciously prosecuted, and she was damaged.
103. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN TENTH THROUGH FOURTEENTH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42
U.S.C. SECTION 1983, BY POLICE OFFICER GREIGE, LT. DYM, AND JANE, JILL
AND JIM DOE IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS
OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

104. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "103" with the same force and effect as if more fully and at length set forth herein.

105. That at all times hereinafter mentioned, the defendant “Greige” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
106. That at all times hereinafter mentioned, the defendant “Dym” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
107. That at all times hereinafter mentioned, the defendants “Jane, Jill and Jim” were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
108. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, “City”.
109. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived her of the rights, privileges and immunities secured to her by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
110. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:
- i. The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
 - ii. The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation;

- iii. The right to Due Process Law;
 - iv. The right to equal protection under the law; and
 - v. The right not to be subjected to cruel and unusual punishment.
111. That by reason of the aforesaid violations such as, seizure of plaintiff's person, her false arrest and false imprisonment, battery, falsifying evidence, discrimination and malicious prosecution, the defendant Police "Officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.
112. That as a direct proximate result of "the officers" actions plaintiff was physically and emotionally injured, lost her job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
113. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
114. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FIFTEENTH THROUGH NINETEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICER GREAIKE, LT. DYM,
AND JANE, JILL AND JIM DOE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

115. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "114" with the same force and effect as if more fully and at length set forth herein.
116. That at all times hereinafter mentioned, the defendant "Greaike" was employed by the defendant The City of New York and/or The New York City Police Department and was

acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

117. That at all times hereinafter mentioned, the defendant "Dym" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

118. That at all times hereinafter mentioned, the defendant "Jane" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

119. That at all times hereinafter mentioned, the defendant "Jill" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

120. That at all times hereinafter mentioned, the defendant "Jim" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

121. That at all times hereinafter mentioned, the defendants "officers", individually and collectively, were acting pursuant to orders and directives from defendant "City".

122. That during all times hereinafter mentioned, the defendants "officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.

123. That the defendant "officers" conspired to deprive plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
124. That by reason of the aforesaid violations such as, seizure and search of plaintiff's person, her false arrest and false imprisonment, battery and assault, falsifying evidence, and malicious prosecution, and discrimination, the defendant Police "Officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1985.
125. That as a direct proximate result of "the officers" actions plaintiff was imprisoned, physically and emotionally injured, lost her job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
126. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
127. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWENTIETH THROUGH TWENTY-FOURTH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICER GREAGIE, LT. DYM,
AND POLICE OFFICERS JANE, JILL AND JIM DOE IN THEIR INDIVIDUAL
CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK,
THE PLAINTIFF ALLEGES:**

128. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "127" with the same force and effect as if more fully and at length set forth herein.

129. That at all times hereinafter mentioned, the defendant "Greige" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
130. That at all times hereinafter mentioned, the defendant "Dym" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
131. That at all times hereinafter mentioned, the defendant "Jane" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
132. That at all times hereinafter mentioned, the defendant "Jill" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of her official capacity and her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
133. That at all times hereinafter mentioned, the defendant "Jim" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
134. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.
135. That during all times hereinafter mentioned, the defendants "officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to

prevent or aid in the preventing of the commission of the same the "officers" neglected or refused to do so.

136. That the officers, each of them could have aided or prevented the seizure and search of plaintiff's person, the plaintiff's false arrest and false imprisonment, the battery, the falsifying of evidence, and malicious prosecution, and discrimination, the defendant Police "Officers" refused or neglected to do so, and thereby violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1986.

137. That as a direct proximate result of "the officers" actions plaintiff was imprisoned, physically and emotionally injured, lost her job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

138. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

139. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

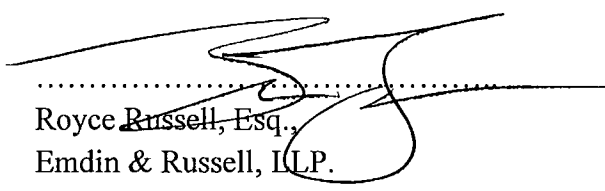
AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS FOR
MALICIOUS PROSECUTION

140. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "139" with the same force and effect as if more fully and at length set forth herein.

141. The defendants filled out false police reports, falsified evidence, signed a false criminal court complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting her for the charge of rioting in the second degree.
142. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that she sustained at the hands of the police.
143. The plaintiff was at all times innocent of any crime charged.
144. That due to the malicious prosecution the plaintiff was caused to spend money to obtain legal counsel and attend and appear at Bronx County Criminal Court for at least seven (7) court dates.
145. On March 20, 2018 all criminal charges were dismissed against the plaintiff.
146. That by reason of the aforesaid malicious prosecution, the plaintiff was terminated from employment and has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the fifth through nineteenth causes of action) and such other and further relief as to the Court seems just and proper on the first through the twentieth causes of action.

DATED: New York, New York
July 26, 2018



.....
Royce Russell, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

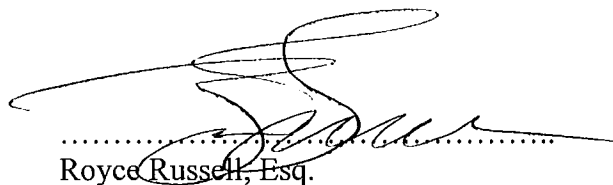
That I am an attorney associated with the law firm of Royce Russell, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
July 26, 2018


.....
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ALLATISHA FOY

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER BRIAN GREAIGE, SHIELD # 13811, INDIVIDUALLY AND AS A POLICE OFFICER; LT. ERIC DYM OF THE 807 COMMAND, PSA #7, TAX ID # 933762, INDIVIDUALLY AND AS A POLICE OFFICER, AND JANE DOE FROM PSA 7 (FEMALE LATINO OFFICER WITH BLOND HAIR, APPROX. 5'6-5'7) AND JILL DOE (FEMALE LATINO OFFICER WITH BLACK HAIR, APPROX. 5'8-5'9), SGT. JIM DOE (AFRICAN AMERICAN MALE DESK SGT. OF PSA 7), ALL WHOSE IDENTITIES ARE PRESENTLY UNKNOWN, INDIVIDUALLY AND AS POLICE OFFICERS.

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: Corporation Counsel
100 Church Street
New York, NY. 10007

New York City Police Department
1 Police Plaza
New York, NY 10007

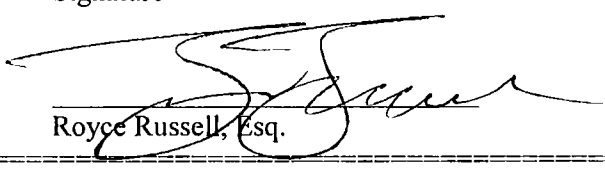
Police Officer Brian Greaige
Shield # 13811
c/o PSA 7
737 Melrose Avenue
Bronx, NY 10455

Lieutenant Eric Dym
Tax# 933762
c/o PSA 7
737 Melrose Avenue
Bronx, NY 10455

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: July 26, 2018

Signature


Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on